

25CV02601 Irene B. Kopel, as trustee of the Irene B. Kopel 1993 Trust u/d/t dated November 23, 1993, v. Lynch Construction, Inc.

County: santa-barbara

Division: Civil Law & Motion

Department: 3 SB-Anacapa

Hearing date: 2026-05-27

Motion: 1. Motion of Defendant and Cross-Complainant to File First Amended Cross-Complaint; 2. Motion of Defendant and Cross-Complainant to File First Amended Cross-Complaint

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Tentative Ruling: Irene B. Kopel, as trustee of the Irene B. Kopel 1993 Trust u/d/t dated November 23, 1993, v. Lynch Construction, Inc.

Case Number

25CV02601

Case Type

Civil Law & Motion

Hearing Date / Time

Wed, 05/27/2026 - 10:00

Nature of Proceedings

1. Motion of Defendant and Cross-Complainant to File First Amended Cross-Complaint; 2. Motion of Defendant and Cross-Complainant to File First Amended Cross-Complaint

Tentative Ruling

For Plaintiff Irene B. Kopel, as trustee of the Irene B. Kopel 1993 Trust u/d/t dated November 23, 1993: Christopher E. Haskell, Cory T. Baker, Price, Postel & Parma LLP

For Defendant and Cross-Complainant Lynch Construction, Inc.: S. Joanna Dyriam, Ashton L. McKinnon, Wood, Smith, Henning & Berman LLP; Patrick W. Berry, Seth A. Kaswan, McCoy Leavitt Laskey LLC; Peter K. Pritchard, Javid Laknahour, Sellar Hazard & Lucia

RULING

The motion of Defendant and cross-complainant Lynch Construction, Inc., for leave to file a first amended cross-complaint is granted.

The motion of Plaintiff Irene B. Kopel for leave to file a first amended complaint is granted.

The amended pleadings for which leave is granted by these orders shall be filed and served, in forms substantially the same as attached to the respective motions, on or before June 4, 2026.

Background

On April 28, 2025, Plaintiff Irene B. Kopel, as trustee of the Irene B. Kopel 1993 Trust u/d/t dated November 23, 1993 (Kopel), filed the original complaint in this construction defect action against Defendant Lynch Construction, Inc. (Lynch).

On June 30, 2025, Lynch filed its answer to the complaint, generally denying the allegations thereof and asserting 38 affirmative defenses. Lynch concurrently filed a cross-complaint (Lynch Cross-Complaint) for indemnity and negligence against cross-Defendants Southwest Door & Window of California, Inc. (Southwest Door), Lewis Plumbing Inc. (Lewis Plumbing), Anguiano Bros. Corporation (Anguiano Bros.), Pat Thomas Drywall (Thomas Drywall), Quality Plastering, Inc (Quality Plastering), Ironcad Ltd. (Ironcad), Illestine Tile, Inc. (Illestine Tile), Custom Paver Pros Inc. (Custom Paver), Santa Barbara Surfacing, Inc. (SB Surfacing), and Besand Group (Besand).

On August 15, 2025, Ironcad filed its answer to the Lynch Cross-Complaint, generally denying the allegations thereof and asserting 26 affirmative defenses.

On August 27, 2025, the Court designated this matter as complex.

On September 10, 2025, Besand filed its answer to the Lynch Cross-Complaint, generally denying the allegations thereof and asserting 21 affirmative defenses. Besand concurrently filed a cross-complaint against fictitiously named cross-Defendants for indemnity.

On September 17, 2025, Quality Plastering filed its answer the Lynch Cross-Complaint, generally denying the allegations thereof and asserting 30 affirmative defenses.

On September 19, 2025, Anguiano Bros. filed its answer the Lynch Cross-Complaint, generally denying the allegations thereof and asserting 25 affirmative defenses.

On September 24, 2025, Illestine Tile filed its answer the Lynch Cross-Complaint, generally denying the allegations thereof and asserting 19 affirmative defenses.

On October 7, 2025, Thomas Drywall filed its answer the Lynch Cross-Complaint, generally denying the allegations thereof and asserting 37 affirmative defenses.

On October 19, 2025, SB Surfacing filed its answer the Lynch Cross-Complaint, generally denying the allegations thereof and asserting 39 affirmative defenses.

On December 15, 2025, the Court entered a joint complex case management order.

On January 12, 2026, Lynch filed its amendment to the Lynch Cross-Complaint identifying as Defendants Roe 1 through 7 as, respectively, Challenge Asphalt, Inc. (Challenge Asphalt), Custom Hardscapes, Inc. (Custom Hardscapes), Jon Rose Construction, Inc. (Rose Construction), Lazcano Masonry & Concrete, Inc. (Lazcano Masonry), Loewen, Pacific Stoneworks, Inc. (Pacific Stoneworks), and Pappa's Plastering & Drywall, Inc. (Pappa's Plastering).

On March 17, 2026, Lynch filed its motion for leave to file a first amended cross-complaint to add two cross-Defendants and to add a new cause of action for professional negligence against those cross-Defendants.

On April 7, 2026, Kopel filed three "Doe" amendments to the complaint, identifying Anguiano Bros, Custom Hardscapes, and Quality Plastering as Does 1 through 3, respectively.

On April 13, 2026, Custom Hardscapes filed its answer to the Lynch Cross-Complaint, generally denying the allegations thereof and asserting 19 affirmative defenses. Custom Hardscapes concurrently filed a cross-complaint (Custom Hardscapes Cross-Complaint) for indemnity against Lynch and each of the other Lynch Cross-Complaint Cross-Defendants.

On April 21, 2026, Anguiano Bros filed its answer to the complaint, generally denying the allegations thereof and asserting 19 affirmative defenses.

On April 29, 2026, Kopel filed a motion for leave to file a first amended complaint to add specific charging allegations against five Doe Defendants and to add and clarify factual allegations regarding the construction defects. Also on April 29, Kopel filed two "Doe" amendments to the complaint identifying Rose Construction and Lazcano Masonry as Does 4 and 5, respectively.

On May 1, 2026, Quality Plastering filed its answer to the Custom Hardscapes Cross-Complaint, generally denying the allegations thereof and asserting 17 affirmative defenses.

On May 11, 2026, Custom Hardscapes filed its answer the complaint, generally denying the allegations thereof and asserting 13 affirmative defenses. Also on May 11, Quality Plastering filed its answer to the complaint, generally denying the allegations thereof and asserting 27 affirmative defenses. Quality Plastering concurrently filed a cross-complaint (Quality Plastering Cross-Complaint) against Anguiano Bros, Ironcad, Illestine Tile, and SB Surfacing. Also on May 11, Lynch Construction requested, and the Court entered, default on the Lynch Cross-Complaint as to Rose Construction, Lazcano Masonry, and Pappa's Plastering.

On May 12, 2026, Lynch filed its answer to the Custom Hardscapes Cross-Complaint, generally denying the allegations thereof and asserting 37 affirmative defenses. Also on May 12, SB Surfacing filed its answer to the Custom Hardscapes Cross-Complaint, generally denying the allegations thereof and asserting 39 affirmative defenses.

On May 13, 2026, Lynch filed its response and non-opposition to Kopel's motion for leave to file a FAC. Lynch notes that the expansion of the alleged defects as stated in the proposed FAC warrants a continuance of deadlines and trial. No opposition and no other responses have been filed to either motion for leave to amend.

On May 18, 2026, SB Surfacing filed its answer to the Quality Plastering Cross-Complaint, generally denying the allegations thereof and asserting 39 affirmative defenses.

Analysis

“ ‘The Court may, in furtherance of justice and on any terms as may be proper, allow a party to amend any pleading....’ [Citation.] However, the Court’s discretion will usually be exercised liberally to permit amendment of the pleadings. [Citations.] The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified.” (Howard v. County of San Diego (2010) 184 Cal.App.4th 1422, 1428.)

Both motions for leave to file amended pleadings are unopposed and there is no showing of prejudice in granting the motions. The motions will be granted.

Any issues regarding trial or other dates will be addressed at a case management conference or by noticed motion.

Judges

Judge Thomas Anderle

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